

Sandeep Mishra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 February 2017 · Writ-C No. 6767 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill and recovery is not entertained where Clause 6.5 of the Electricity Supply Code, 2005 supplies an alternative remedy. The petition was dismissed at the threshold.

FACTUAL SUMMARY

The petitioner, Sandeep Mishra, filed a writ petition in the Allahabad High Court disputing an electricity bill raised by the respondents and challenging recovery proceedings initiated on that bill. Learned counsel for the respondents submitted that the petitioner could pursue the objection remedy under Clause 6.5 of the Electricity Supply Code, 2005. The Division Bench did not examine the bill or the recovery on merits and treated Clause 6.5 as an available alternative. The petition was dismissed at the threshold.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-dispute-alternative-remedy

HOLDING

A writ petition disputing an electricity bill and challenging recovery proceedings will not be entertained where the consumer has the alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND LEGALITY OF THE RECOVERY PROCEEDINGS

Left to the Clause 6.5 remedy; writ not entertained on merits. ¶ 1